

25STCV24344 25STCV24344

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-11

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Case Number: 25STCV24344 Hearing Date: September 11, 2026 Dept: 414

25STCV24344 Taskey v. Benjamin Boston, et
al.

Friday, September
11, 2026

TENTATIVE ORDER DENYING

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANTS, BENJAMIN BOSTON, LEXINGTON PLAZA LLC, ROXBURYLANE, L.P., KATHY SMALL DBA L.A. RESIDENCE, AND ELLIOT HYLAND, TO FORM INTERROGATORIES, SET ONE; REQUEST FOR SANCTIONS [Res. No. -0466]

I.

BACKGROUND

The third

amended complaint alleges that Defendants Benjamin Boston, Lexington Plaza LLC, Roxburylane, L.P., Kathy Small dba L.A. Residence, and Elliot Hyland are debtors liable on a claim and judgment Plaintiff obtained in a prior action. Plaintiff alleges that Defendants have improperly routed judgment-debtor-derived rent proceeds and rent-payment rights to Sky Properties Inc., obstructing Plaintiff's ability to collect on the judgment allegedly owned. Plaintiff alleges 3 causes of action for actual voidable transfer, constructive voidable transfer, and declaratory relief.

II.

DISCUSSION

A motion to compel further

responses to form interrogatories is proper where the requesting party believes the responses are evasive and incomplete, that an objection is without merit, or an exercise of the option to produce documents is unwarranted. (Code Civ. Proc., sections 2030.300 subd. (a).) The motion must be accompanied by a meet and confer declaration. (Id. subd. (b).)

Plaintiff moves to compel further responses from Defendants Benjamin Boston, Lexington Plaza LLC, Roxbury Lane, L.P., Kathy Small dba L.A. Residence, and Elliot Hyland to Form Interrogatories, Set One, Nos. 15.1 and 17.1 and to compel further responses from Defendant Elliot Hyland to Form Interrogatories, Set One, No. 2.5.

A.

Improperly

Combined Motion

As a preliminary matter, the Court notes that there is no legal authority or rule of Court permitting Plaintiff to improperly combine five separate motions to be heard together absent a Court order permitting such. Multiple motions should not be combined into a single filing. (See Govt. Code, § 70617(a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) [“Motions to compel compliance with separate discovery requests ordinarily should be filed separately.”].) The California Rules of Court only permit the combining of the papers in support of the same motion. (Rules of Court, Rule 3.1112(c).) Rather, each motion requires a separate notice, a motion, and memorandum in support. (Rules of Court, Rule 3.1112(a).)

Combining multiple motions under the guise of one motion with one hearing reservation manipulates the Court Reservation System and unfairly jumps ahead of other litigants. Moreover, Plaintiff does not dispute that the Court has previously admonished her that discovery motions must be filed separately. (Reply, p. 13:9-12.) This alone is grounds to deny the motion.

B.

Timeliness

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., sections 2030.300 subd. (c).)

Here,

Defendants served responses to the Form Interrogatories, Set One, on March 30, 2026. (Taskey Decl., Exs. A-E.) However, notice of the instant motion was not given until August 17, 2026, well after the statutory 45-day deadline. Although Plaintiff asserts that the March 30, 2026, responses were not verified, in the opposition, Defendants submit evidence demonstrating that verifications were served along with the substantive responses on March 30, 2026. (Moser Decl., Exs. B-F.) Thus, the motion is untimely, and Plaintiff has waived any right to compel a further response to the interrogatories. (Code Civ. Proc., sections 2030.300 subd. (c).) Based on the foregoing, the motion is DENIED.

C.

Request for Sanctions

As the motion has been denied, Plaintiff's request for sanctions is likewise DENIED. Defendants also request sanctions against Plaintiff for unsuccessfully bringing this motion. (Opp., p. 7:5-7.) However, Defendants make the request only in passing and do not specify the amount of sanctions sought or provide any description of the time incurred in opposing the motion. Under these circumstances, Defendants' request for sanctions is DENIED.

III.

CONCLUSION

Plaintiff's motion to compel further responses to form interrogatories is DENIED.